

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO. 1847 OF 2026

Sunrise Housing Private Limited ...Petitioner

VERSUS

1. State of Maharashtra ...Respondent No.1

2. Mumbai Metropolitan Region Development Authority ...Respondent No.2

AFFIDAVIT IN REPLY ON BEHALF OF RESPONDENT NO. 2

I, Arvind Rajan, the Deputy Metropolitan Commissioner of the Respondent No.2 above named, do hereby solemnly affirm and state as under:

1. I say that I am the Deputy Metropolitan Commissioner of the Respondent No.2 in the above Writ Petition and am well acquainted with the facts and circumstances of the case. I have perused a copy of the Writ Petition filed by Sunrise Housing Private Limited. I am filing this Affidavit in Reply on behalf of Respondent No. 2, Mumbai Metropolitan Region Development Authority, to oppose the contentions raised in the Writ Petition and the reliefs sought by the Petitioner. I am competent to affirm this Affidavit in Reply.

2. At the outset, I deny each and every allegation, contention and submission made in the Writ Petition, save and except those specifically admitted herein. I say that the Writ Petition is misconceived, devoid of merits and is liable to be dismissed in limine. Respondent No. 2 denies all statements, contentions and averments made in the Writ Petition except those specifically admitted in this Affidavit in Reply. Nothing contained in the Writ Petition that has not been specifically dealt with or admitted is to be treated as an admission by Respondent No. 2.

3. I say that the Writ Petition is misconceived and devoid of merits. The actions challenged by the Petitioner were taken in accordance with the applicable redevelopment procedure and within the authority available to Respondent No. 2. The action complained of has been taken strictly in accordance with law and after following due procedure. No legal, constitutional or fundamental right of the Petitioner has been infringed.

4. With reference to the averments made in the Petition, I say that Respondent No. 2 denies that the impugned communication dated 15 July 2026 was issued without authority.

5. With reference to the averments made in the Petition, I say that the communication dated 15 July 2026 was issued pursuant to the applicable redevelopment procedure and after consideration of the relevant records.

6. With reference to the averments made in the Petition, I say that Respondent No. 2 relies upon the communication dated 15 July 2026. Hereto annexed and marked as EXHIBIT-'A' is a copy of the communication dated 15 July 2026.

7. In the premises aforesaid, I say that the Writ Petition deserves to be dismissed with costs.

PRAYER

I therefore respectfully pray that this Hon'ble Court may be pleased to:

(a) dismiss the present Writ Petition with costs;

(b) refuse any interim or ad-interim relief sought by the Petitioner; and

(c) grant such other and further reliefs as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

Solemnly affirmed at Mumbai

On this 5th day of September 2026

Before Me DEPONENT

VERIFICATION

I, Arvind Rajan, the Deponent above named, do hereby verify that the contents of paragraphs 1 to 7 and the Prayer above are true and correct to my knowledge and belief and that nothing material has been concealed therefrom.

Verified at Mumbai on this 5th day of September 2026.

DEPONENT

Rajan & Associates

Advocates for the Respondent No.2.